Gun rights group sues to block firearms and ammunition excise tax from being enforced

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The gun rights group Firearms Policy Coalition on Wednesday announced that it is suing to block California's new 11% excise tax on firearms and ammunition from being enforced.

The lawsuit, filed in San Diego County Superior Court, contends that the tax is a violation of the Second Amendment.

"California's unconstitutional and immoral gun tax is a modern Jim Crow law that targets people and rights hated by tyrants like Governor Gavin Newsom," said FPC President Brandon Combs in a statement. "Thankfully, the Constitution forbids California's political warfare scheme."

The Second Amendment protects the rights of Americans to keep and bear arms.

The complaint argues that if the tax is permitted to be enforced, "there is nothing stopping California from imposing a 50% or even 100% tax on a constitutional right it disfavors - whether it be the right to keep and bear arms, the right to free exercise of religion, or any other right."

The FPC is joined in the lawsuit by the National Rifle Association, the California Rifle and Pistol Association and the Second Amendment Foundation.

Revenue from the excise tax, created by Assembly Bill 28 which Newsom signed in 2023, will go toward gun violence prevention programs, which will be "used to fund various gun violence prevention, education, research, response, and investigation programs," according to the language of the law.

Reached for comment, Newsom spokesman Daniel Villaseñor said in a statement, "The cost of gun violence far outweighs the cost of this tax. This is a modest investment in gun violence prevention programs that are proven to work. There's a reason California is ranked the No. 1 state for gun safety - and we won't back down from defending commonsense policies like this that help save lives."

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